

21STCV41026 21STCV41026

County: los-angeles

Division: Civil Law and Motion

Department: F46

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Case Number: 21STCV41026 Hearing Date: July 1, 2026 Dept: F46

TENTATIVE FINDINGS AND ORDER

REGARDING DEPARTMENT 1 REFERRAL

The matter is before the Court for the specially set Trial Setting Conference pursuant to the Court's June 3, 2026 Trial Management Order.

The Court has reviewed and considered the parties' Joint Trial Management Statement, the jointly prepared Witness/Trial Management Chart, the supplemental briefing submitted by the parties, the prior proceedings in this matter, and the current Department 1 procedures governing requests for assignment of an Independent Calendar case to a dedicated trial court.

The Court first wishes to acknowledge and thank counsel for their thorough compliance with the Court's June 3, 2026 Trial Management Order. The parties' joint submissions, particularly the detailed Witness/Trial Management Chart, were thoughtful, professional, and extremely helpful in allowing the Court to independently evaluate the realistic management and anticipated duration of trial. The Court appreciates counsel's efforts in meeting and conferring, narrowing issues where possible, and providing the detailed information requested by the Court.

Tentative Findings Regarding Department 1 Referral

Having independently reviewed the parties' submissions and considered the applicable Department 1 procedures, the Court makes the following tentative findings:

The

parties have substantially complied with the Court's June 3, 2026 Trial Management Order and have provided sufficient information for the Court to independently assess the realistic evidentiary duration and management of trial.

The

Court has independently evaluated the anticipated witness testimony, witness designations, examination time estimates, potential cumulative evidence, opportunities for stipulations, possible deposition designations, anticipated evidentiary issues, and the effect of reasonable time limitations upon the presentation of evidence.

Although

the parties estimate that trial may require approximately one month or more of court time, anticipated trial duration, standing alone, does not constitute the type of extraordinary circumstance contemplated by the current Department 1 procedures for assignment of an Independent Calendar case to a dedicated trial court.

Based

upon the parties' submissions and the Court's independent review, the Court presently finds that this matter is capable of being effectively managed within Department F46 through active trial management, including reasonable examination time limitations where appropriate, rulings regarding cumulative evidence, consideration of stipulations and deposition designations, and other trial management tools available to the Court.

The

present record does not demonstrate an unusual circumstance, intractable scheduling conflict, or other extraordinary condition warranting referral of this matter to Department 1 for consideration of assignment to a dedicated trial court.

Consistent

with the Court's trial management principles, the determination whether a case should remain assigned to an Independent Calendar department is based upon the Court's independent assessment of objective trial readiness and

realistic trial management—not solely upon the parties' estimated duration of trial. The information submitted by counsel has enabled the Court to make that independent assessment.

Tentative Order

Accordingly, the Court's tentative is to determine that referral of this matter to Department 1 for consideration of assignment to a dedicated trial court is not warranted at this time. The matter shall therefore remain assigned to Department F46 for all further proceedings, including trial.

This tentative is limited to the issue of Department 1 referral.

If this tentative becomes the order of the Court, the Court will then conduct the Trial Setting Conference for the purpose of determining an appropriate firm trial date consistent with the Court's calendar, the orderly administration of justice, and the Court's trial management principles.

Counsel should be prepared to address only those matters relevant to trial scheduling and any remaining trial management issues not resolved by this tentative.